

General Provisions

Texas Real Estate Commission Standards of Practice · **22 TAC 535.227** · For the TREC state exam (25 questions, pass at 75%)

Start here, and study this file hardest. Section 535.227 is the framework that governs every other section. It is also the part with no equivalent on the national exam, so it is where Texas-specific questions concentrate.

The seven parts of 535.227

The section runs (a) to (g) in this order. Knowing the order is itself examinable:

- (a) **Scope**
- (b) **Definitions**
- (c) **General requirements**
- (d) **General limitations**
- (e) **Controlling provision**
- (f) **Departure provision**
- (g) **Enforcement**

(a) Scope

The standards apply when a licensed professional or real estate inspector accepts employment to perform a real estate inspection **for a prospective buyer or seller**. They set the **minimum requirements** for an inspection of a **one to four family dwelling** that is **substantially completed**.

Three qualifiers, all testable: buyer or seller (not a lender or builder), one to four family (not commercial), substantially completed (not mid-construction). Change any one and the SOP does not apply.

(c) General requirements — the three duties

The inspector shall:

1. **Operate** fixed or installed equipment and appliances in **at least one mode**, using **ordinary controls at typical settings**;
2. **Visually inspect** accessible systems from **near proximity**, including from inside the **attic and crawl spaces**;
3. **Complete the standard inspection report form** required by 535.222 and 535.223.

Uniquely Texas: the report form is *mandatory and promulgated*. You do not write your own format. That alone separates Texas from the national standard.

(d) General limitations — what you are NOT required to do

The longest part of the section, and the richest source of questions. The inspector is not required to:

Inspect

- Items other than those listed in these standards
- **Elevators**
- **Detached buildings, decks, docks, fences**, waterfront structures or related equipment
- Anything **buried, hidden, latent or concealed**
- **Sub-surface drainage systems**

- Automated or programmable controls, automatic shut-offs, photoelectric sensors, timers, clocks, metering devices, signal lights, lightning arrestors, remote controls, security or data systems, **solar panels** or **smart home automation**
- **Concrete flatwork** — driveways, sidewalks, walkways, paving stones, patios

Report

- **Past repairs that appear effective and workmanlike**, except where specifically required
- **Cosmetic or aesthetic conditions**
- **Wear and tear from ordinary use**

Determine

- The presence or absence of **pests, termites or other wood-destroying insects or organisms**
- The presence, absence or risk of **asbestos, lead-based paint** and other environmental hazards

Note the detached-structures rule. Decks and fences are excluded when *detached*. Porches, balconies, decks and carports attached to the dwelling ARE covered, under 535.228(j).

(e) Controlling provision

Where the general provisions conflict with a specific provision elsewhere in the standards, **the specific provision takes precedence.**

A clean one-line rule and an easy mark: **specific beats general.**

(f) Departure provision

An inspector may depart from inspecting a required component **only if**:

- The **inspector and client agree** the item is not to be inspected;
- The **inspector is not qualified** to inspect the item; or
- In the inspector's reasonable judgment, **conditions prevent inspection**, or conditions or materials are **hazardous to the health or safety of the inspector.**

This concept does not exist on the national exam. Departure is a formal, limited permission with named grounds — not a general licence to skip things. Learn the grounds as a closed list: agreement, qualification, conditions or hazard.

(g) Enforcement

Failure to comply with the standards of practice is grounds for **disciplinary action as prescribed by Chapter 1102** of the Occupations Code.

Check Yourself

1. A builder hires you to inspect a half-finished house. Do the SOP apply?

No. The SOP apply to an inspection for a prospective buyer or seller of a substantially completed one to four family dwelling.

2. Name the three grounds for departure.

Client agreement, inspector not qualified, or conditions that prevent inspection or are hazardous to the inspector.

3. A general provision conflicts with a specific one. Which wins?

The specific provision.

4. Must you report a past repair that looks well done?

No, unless a specific standard requires it. Same for cosmetic conditions and ordinary wear and tear.

Content follows the official TREC Standards of Practice, 22 TAC 535.227-535.233. Rules are amended periodically — verify against the current version on trec.texas.gov before the exam.